M/S Bses Rajdhani Power vs Delhi Electricity Regulatory ... on 1 December, 2008

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)
Appeal No.144 of 2008 with I.A. No. 184 of 2008
&
Appeal No.145 of 2008 with I.A. No. 185 of 2008

Dated: 1st December, 2008

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. A.A. Khan, Technical Member

Appeal No.144 of 2008 with I.A. No. 184 of 2008

M/s BSES Rajdhani Power Ltd., ... Appellant (s)
Versus
Delhi Electricity Regulatory Commission & Ors., ... Respondent (s)

Appeal No.145 of 2008 with I.A. No. 185 of 2008

M/s BSES Yamuna Power Ltd., ... Appellant (s)
Versus
Delhi Electricity Regulatory Commission & Ors., ... Respondent (s)

Counsel for the Appellant (s) : Mr. Amit Kapur & Mr. Mansoor Ali

ORDER

We are not inclined to admit these appeals, as in our view prima facie case to admit these appeals is not made out besides its maintainability. However, sensing the difficulty, Mr. Amit Kapur, the learned counsel for the appellant, seeks permission to withdraw the appeals with liberty to approach the Commission.

Accordingly, permission is granted and the appeals are dismissed as withdrawn.

(A.A. Khan)
Technical Member

(Justice M. Karpaga Vinayagam)
Chairperson

surekha/veena